

San Mateo Police Department



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San Mateo, CA 94403-1921
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August 31, 2026

Brian C.

RE: Public Records Act Request #W013278-081926

Dear Brian:

In accordance with Government Code § 7922.525, a legal review of your request has been completed. Any redactions or exemptions cited in the Department's response have been reviewed and authorized by the signatory of this letter.

This letter responds to your California Public Records Act ("CPRA") request dated August 19, 2026, submitted under Reference #W013278-081926.

1. The executed "mutually agreed upon data protection agreement" described in the passage quoted above — the instrument Flock's Privacy Policy directs its customers to execute — whatever title it actually carries (data protection agreement, data processing agreement, data processing addendum, DPA, data security agreement, or similar), including all exhibits, schedules, and amendments.

Department Response:

A good faith and diligent search yielded no responsive records.

2. Any template, form, model, or standard version of that instrument held in City or Department files, in any state — executed, unexecuted, draft, or redlined.

Department Response:

A good faith and diligent search yielded no responsive records.

3. The index, inventory, document list, or file listing for the Flock vendor file and contract file, as maintained in the City's contract management, purchasing, or records system — the listing itself, sufficient to identify every document filed under the Flock agreements. Not the underlying documents.

Department Response:

Please refer to the folder titled “Item 3 Attachments” in GOV QA for responsive records.

4. Contract review checklists, contract routing or approval forms, contract summary sheets, and signature routing slips prepared for the 2020 agreement, the 2023 Master Services Agreement, and each amendment.

Department Response:

Please refer to the folder titled “Item 4 Attachment” in GOV QA for responsive records.

5. The City's standard contract provision, exhibit, or template addressing data security, data privacy, or vendor handling of personal information, together with any record documenting its inclusion in, waiver from, or omission from the Flock agreements.

Department Response:

Please refer to attachments provided on the GOV QA portal.

6. Any Management Control Agreement, CJIS Security Addendum, or equivalent instrument executed with Flock or with any Flock subcontractor, and records sufficient to identify whether any hot list used by the Department within the Flock platform derives from CLETS, NCIC, or the Stolen Vehicle System.

Department Response:

Regarding your request for any “Management Control Agreement, CJIS Security Addendum, or equivalent instrument executed with Flock or with any Flock subcontractor,” the Department conducted a search for responsive records and determined that it does not possess any records responsive to this portion of your request.

Regarding your request for “records sufficient to identify whether any hot list used by the Department within the Flock platform derives from CLETS, NCIC, or the Stolen Vehicle System,” the Department’s search identified a substantial volume of potentially responsive records that require review. Due to the volume of records requiring review, responsive, non-exempt records will be produced on a rolling basis as the Department completes its review.

7. Any copy of Flock's Privacy Policy, Terms of Service, or other published vendor terms maintained in the City's contract or vendor files, and any record identifying which version was reviewed at each execution.

Department Response:

A good faith and diligent search yielded no responsive records.

8. Records sufficient to identify each subcontractor or third party Flock uses to store or process San Mateo ALPR data, and any City approval, review, or acknowledgment of them.

Department Response:

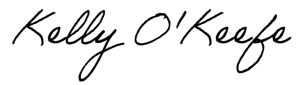
A good faith and diligent search yielded no responsive records.

9. Any notification from Flock to the City of a data breach, security incident, or unauthorized access affecting San Mateo ALPR data.

Department Response:

A good faith and diligent search yielded no responsive records.

Best Regards,

A handwritten signature in black ink that reads "Kelly O'Keefe". The script is cursive and fluid, with the first letters of each word being capitalized and prominent.

Kelly O'Keefe
Police Technical Services Administrator